

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S NOTICE OF DIRECTLY
ADVERSE CONTROLLING
AUTHORITY (RPC 3.3(a)(2))**

(CCP § 1005; CRC 3.1110)

Dept.: 302
Date: June 24, 2026

**PLAINTIFF'S NOTICE OF DIRECTLY ADVERSE CONTROLLING AU-
THORITY (CAL. RULE OF PROFESSIONAL CONDUCT 3.3(A)(2)):
JKC3H8 V. COLTON, (2013) 221 CAL.APP.4TH 468**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

**I. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING
LINE**

By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
this Court continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department

302, and directed: “All parties immediately to provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the new hearing date.” Plaintiff submits this Notice in conformity with that order and pursuant to Cal. Rule of Professional Conduct 3.3(a)(2), which is the disclosure obligation framework applicable to the tribunal.

II. THE THREE MOTIONS ON THE JUNE 24, 2026 LINE

This Notice is tendered in connection with the following three motions set for hearing on June 24, 2026, 9:00 a.m., Department 302:

- (A) Defendant CSAA Insurance Exchange’s Special Motion to Strike pursuant to CCP section 425.16, filed April 9, 2026 (seqs 015 to 018).
- (B) Defendant’s Demurrer to Plaintiff’s First Amended Complaint, filed April 13, 2026 (seqs 019 to 023).
- (C) Plaintiff’s Motion to Strike the May 6, 2026 Reply Declaration of Tyler J. O’Connell and Exhibit A, filed May 8, 2026 (Transaction ID 79429443).

III. THE FOUR-ELEMENT RULE 3.3(A)(2) RUBRIC APPLIED TO JKC3H8 V. COLTON

Cal. Rule of Professional Conduct 3.3(a)(2) provides: “A lawyer shall not: . . . (2) fail to disclose to the tribunal legal authority in the controlling jurisdiction known to the lawyer to be directly adverse to the position of the client and not disclosed by opposing counsel . . .”

JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 satisfies each of the four elements of that disclosure obligation as applied to the representation identified in Section IV below:

1. **Legal authority.** JKC3H8 is a published California Court of Appeal opinion (Third Appellate District; Hoch, J.; review denied), citable in California superior courts.
2. **Controlling jurisdiction.** California; the Third District is a California Court of Appeal whose published opinions bind every California superior court under Auto Equity Sales, Inc. v.

1 Superior Court (1962) 57 Cal.2d 450.

- 2 3. **Directly adverse.** The opinion expressly addresses the leave-to-amend / CCP section 425.16
3 intersection that the defense Opposition to Plaintiff’s Motion for Leave to Amend, in its
4 Introduction, represented “no such authority exists” on. (JKC3H8, 221 Cal.App.4th at pp. 471
5 to 472, 477 to 478, 479.)
- 6 4. **Not disclosed by opposing counsel.** The defense Opposition to Plaintiff’s Motion for Leave
7 to File a Second Amended Complaint (filed April 23, 2026) does not cite JKC3H8 anywhere
8 in its body or in its Table of Authorities.

9 _____

10 **IV. THE REPRESENTATION TRIGGERING THE DISCLOSURE OBLI-**
11 **GATION**

12 The Introduction to the Opposition to Plaintiff’s Motion for Leave to File a Second Amended
13 Complaint (filed April 23, 2026; “MFL-SAC Opposition”) states, verbatim:

14 “Plaintiff cites no authority to support the proposition that he can file his Motion for
15 Leave to Amend, as no such authority exists to support his motion.”
16 (MFL-SAC Opposition, Introduction.)

17 The published California Court of Appeal opinion in JKC3H8 v. Colton (2013) 221 Cal.App.4th
18 468 is directly adverse to that representation within the meaning of Cal. Rule of Professional
19 Conduct 3.3(a)(2).

20 _____

21 **V. CROSS-REFERENCE TO THE APRIL 28, 2026 LODGED NOTICE**

22 For continuity of the record, Plaintiff cross-references the prior Notice of Adverse Authority con-
23 cerning JKC3H8 v. Colton, lodged in this case on April 28, 2026 (Transaction ID 79331632). This
24 Notice re-tenders the disclosure obligation under Rule 3.3(a)(2) on the June 24, 2026 hearing line
25 per the May 13, 2026 minute order. No new argument is introduced.

1 **VI. NO ORDER REQUESTED; RESERVATION**

2 Plaintiff respectfully draws the Court's attention to the disclosure obligation framework of Cal.
3 Rule of Professional Conduct 3.3(a)(2). This Notice is not a motion for sanctions and does not
4 restart any safe-harbor period. No order is requested by this notice.
5

6 **VII. SERVICE**

7 This Notice is served on Defendant's counsel of record (Mark G. Tapp, Tyler J. O'Connell, Mason
8 Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per CCP section 1010.6 and
9 Cal. Rules of Court, rule 1.21, with a Proof of Service (POS-050) filed contemporaneously.
10

11 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path